

## CHAPTER 56

An Act to revise the statute law by repealing obsolete,  
spent or unnecessary enactments. [29th July, 1960]

**B**E it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Acts specified in the first and second columns of the Schedule to this Act (which to the extent specified in the third column of that Schedule are obsolete, spent or unnecessary) are hereby repealed to that extent.

Repeal of  
obsolete,  
spent or  
unnecessary  
enactments.

(2) The repeal by this section of sections nine and ten of the Regulation of Railways Act, 1871, shall not affect the operation of subsection (2) of section six of the Railway Companies (Accounts and Returns) Act, 1911 (which exempts from the obligations imposed by that Act railway companies which, by virtue of special Acts, are exempted from the operation of the said sections nine and ten).

2. In its application to Northern Ireland this Act shall, as respects matters within the powers of the Parliament of Northern Ireland, be subject to alteration by that Parliament as if it had been an Act passed before the day appointed for the purposes of section six of the Government of Ireland Act, 1920.

Saving for  
powers of  
Parliament of  
Northern  
Ireland.

3. This Act may be cited as the Statute Law Revision Act, Short title. 1960.

## SCHEDULE

### ENACTMENTS REPEALED

#### *Road and Rail Transport Enactments*

| Session and Chapter      | Short Title                                                                       | Extent of Repeal                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
|--------------------------|-----------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 7 & 8 Vict.<br>c. 85.    | The Railway Regulation Act, 1844.                                                 | Sections two to ten and twelve.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 8 & 9 Vict.<br>c. 20.    | The Railways Clauses Consolidation Act, 1845.                                     | Sections twenty-five to twenty-nine.<br>Sections sixty-three and sixty-four.                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 21 & 22 Vict.<br>c. 75.  | The Cheap Trains and Canal Carriers Act, 1858.                                    | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 27 & 28 Vict.<br>c. 120. | The Railway Companies' Powers Act, 1864.                                          | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 27 & 28 Vict.<br>c. 121. | The Railways Construction Facilities Act, 1864.                                   | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 31 & 32 Vict.<br>c. 119. | The Regulation of Railways Act, 1868.                                             | Section thirty-eight.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 34 & 35 Vict.<br>c. 78.  | The Regulation of Railways Act, 1871.                                             | Sections nine and ten.<br>Schedule One.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 36 & 37 Vict.<br>c. 48.  | The Regulation of Railways Act, 1873.                                             | In section six, the words "or of section sixteen of the Regulation of Railways Act, 1868".<br>Sections fifteen and sixteen.<br>Section four and the Schedules.                                                                                                                                                                                                                                                                                                                                                                             |
| 36 & 37 Vict.<br>c. 76.  | The Railway Regulation Act (Returns of Signal Arrangements, Workings, &c.), 1873. |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 41 & 42 Vict.<br>c. 20.  | The Railway Returns (Continuous Brakes) Act, 1878.                                | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 51 & 52 Vict.<br>c. 25.  | The Railway and Canal Traffic Act, 1888.                                          | Sections thirty-two and forty-two.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 56 & 57 Vict.<br>c. 29.  | The Railway Regulation Act, 1893.                                                 | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 59 & 60 Vict.<br>c. 48.  | The Light Railways Act, 1896.                                                     | In section eleven, paragraph (j).<br>In the Second Schedule, the entries relating to the Railway Regulation (Gauge) Act, 1846, the Regulation of Railways Act, 1871, and the Railway Returns (Continuous Brakes) Act, 1878, in the entry relating to the Railway Regulation Act, 1842, the words "four, five, six", in the entry relating to the Regulation of Railways Act, 1868, the word "twenty", and in the entry relating to the Railway Regulation Act (Returns of Signal Arrangements, Workings, &c.), 1873, the words "four and". |

| Session and Chapter       | Short Title                                             | Extent of Repeal                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|---------------------------|---------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1 & 2 Geo. 5.<br>c. 34.   | The Railway Companies (Accounts and Returns) Act, 1911. | Section five.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 9 & 10 Geo. 5.<br>c. 50.  | The Ministry of Transport Act, 1919.                    | Sections eight, nine, ten and fourteen.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 11 & 12 Geo. 5.<br>c. 55. | The Railways Act, 1921.                                 | Sections one, two and four.<br>In section seven, subsection (4).<br>Sections eight and fifteen.<br>The Second Schedule.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 23 & 24 Geo. 5.<br>c. 14. | The London Passenger Transport Act, 1933.               | In section five, in subsection (2), the words "(subject to the provisions of section eighty-two of this Act)".<br>Sections six to fourteen.<br>In section sixteen, in subsection (1), the words "after the appointed day", and subsections (3) to (6).<br>In section seventeen, subsection (1), in subsection (2), the words "after the appointed day", and subsection (5).<br>In section twenty, in subsection (1), the words "Subject to the provisions of this section", and subsection (2).<br>In section twenty-five, subsections (2) and (3).<br>Sections thirty-two to thirty-five.<br>Part III.<br>In section seventy-three, subsection (5), in subsection (7) the words from the beginning to "diminished, or", and subsections (8), (10) and (12).<br>In section seventy-four the words "and (12)".<br>In section eighty-one, in subsection (1), paragraphs (a) to (h) and the words from "nor shall" onwards, and subsection (2).<br>Sections eighty-two to eighty-four.<br>In section eighty-five, subsection (1), and in paragraph (a) of the proviso to subsection (2) the words "or section eighty-two".<br>Section eighty-seven.<br>Sections ninety and ninety-one.<br>Sections ninety-four to ninety-six.<br>Section ninety-nine. |

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| SCH. | Session and Chapter                    | Short Title                                                  | Extent of Repeal                                                                                                                                                                                                                                                                                                                                          |
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|      | 23 & 24 Geo. 5.<br>c. 14— <i>cont.</i> | The London Passenger Transport Act, 1933— <i>cont.</i>       | In section one hundred and seven, in subsection (2), the words from the beginning to "this Act, and " and the words from "and the expressions " to the end, and in subsection (4) the words "eighty-two, eighty-three", and the words "and eighty-seven".<br>In the Third Schedule, Parts I and II.<br>The Fourth, Sixth, Eighth and Fifteenth Schedules. |
|      | 10 & 11 Geo. 6.<br>c. 49.              | The Transport Act, 1947.                                     | Sections twenty to twenty-four.<br>Sections twenty-six and twenty-seven.<br>Sections twenty-nine to thirty-two.<br>In section ninety-four, in subsection (6), the words "nine and ten of the Regulation of Railways Act, 1871, sections thirty-two and "<br>In the Eleventh Schedule, in Part II, paragraph 5.                                            |
|      | 1 & 2 Eliz. 2.<br>c. 13.               | The Transport Act, 1953.                                     | In section seven, subsections (1) to (4).<br>Section eight.<br>Sections twelve and thirteen.                                                                                                                                                                                                                                                              |
|      | 4 & 5 Eliz. 2.<br>c. 56.               | The Transport (Disposal of Road Haulage Property) Act, 1956. | In section eight, subsections (1) to (3), and, in subsection (4), the words from "and (b) any sums " to the end.                                                                                                                                                                                                                                          |

*Post Office Enactments*

| Session and Chapter       | Short Title                              | Extent of Repeal                                                                                               |
|---------------------------|------------------------------------------|----------------------------------------------------------------------------------------------------------------|
| 31 & 32 Vict.<br>c. 110.  | The Telegraph Act, 1868.                 | Sections four, five, seven and fourteen.                                                                       |
| 32 & 33 Vict.<br>c. 73.   | The Telegraph Act, 1869.                 | In section seven, the words from "which he shall " to "Telegraph Act, 1868 ".<br>Section twenty-one.           |
| 41 & 42 Vict.<br>c. 76.   | The Telegraph Act, 1878.                 | In section twelve, the words from "Any notice " to "made by the Postmaster General ".                          |
| 1 & 2 Geo. 6.<br>c. 57.   | The Imperial Telegraphs Act, 1938.       | In section one, subsections (2) to (5).                                                                        |
| 3 & 4 Geo. 6.<br>c. 25.   | The Post Office and Telegraph Act, 1940. | Sections two and five.                                                                                         |
| 12 & 13 Geo. 6.<br>c. 39. | The Commonwealth Telegraphs Act, 1949.   | In section six, subsection (2).<br>In section nine, the words from the beginning to "operating company, and ". |
| 1 & 2 Eliz. 2.<br>c. 36.  | The Post Office Act, 1953.               | Sections thirty and sixty-seven.                                                                               |

*Miscellaneous Enactments*

SCH.

| Session and Chapter        | Short Title                                                              | Extent of Repeal                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
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| 30 Geo. 3. c. 48           | The Treason Act, 1790                                                    | Section four.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 36 Geo. 3. c. 85           | The Mills Act, 1796 ...                                                  | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 48 Geo. 3. c. 127.         | The Marriages Confirmation Act, 1808.                                    | Sections two and four.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 54 Geo. 3. c. 145.         | The Corruption of Blood Act, 1814.                                       | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 7 & 8 Geo. 4. c. 75.       | The Land Tax Commissioners Act, 1827.                                    | In section one, the words from "and also" (where first occurring) to "herein-after directed", the words from "for putting into" to "and also" (where last occurring), the words "herein-after mentioned" and the words from "(that is to say)" to the end.<br>Section two.                                                                                                                                                                                                                                                                                                                          |
| 3 & 4 Will. 4. c. 50.      | The Customs (Repeal) Act, 1833.                                          | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 4 & 5 Will. 4. c. 43.      | The Justices' Qualification (Scilly Islands) Act, 1834.                  | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 11 & 12 Vict. c. 91.       | The Poor Law Audit Act, 1848.                                            | Section eleven.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 20 & 21 Vict. c. 34.       | The New Brunswick Boundary Act, 1857.                                    | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 10 & 11 Geo. 6. c. 46.     | The Wellington Museum Act, 1947.                                         | In section eight, subsection (2).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 12, 13 & 14 Geo. 6. c. 17. | The American Aid and European Payments (Financial Provisions) Act, 1949. | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 2 & 3 Eliz. 2. c. 26.      | The British Industries Fair (Guarantees and Grants) Act, 1954.           | The whole Act.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 7 & 8 Eliz. 2. c. 53.      | The Town and Country Planning Act, 1959.                                 | In section one, subsection (3).<br>In section three, subsection (6).<br>In section seven, in subsection (1) the words "or, in Scotland, of a valuator under section fifty-six of the Lands Clauses Consolidation (Scotland) Act, 1845", and the words "or valuator", in subsection (2), the words "or valuator", subsections (3) and (4), in subsection (5) the words "or subsection (3)", and subsection (6).<br>In section eight, subsection (4).<br>In section nine, in subsection (2), paragraph 5 of the Table, in subsection (7), the words from "or (in a case" onwards, and subsection (9). |

## SCH.

| Session and Chapter                   | Short Title                                                 | Extent of Repeal                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
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| 7 & 8 Eliz. 2.<br>c. 53— <i>cont.</i> | The Town and Country<br>Planning Act, 1959—<br><i>cont.</i> | <p>In section eleven, subsection (2).<br/> In section twelve, subsection (4).<br/> In section fourteen, subsection (7).<br/> In section sixteen, subsection (5).<br/> In section seventeen, subsection (5).<br/> In section eighteen, subsection (9).<br/> In section nineteen, subsection (7).<br/> In section twenty, subsection (5).<br/> In section twenty-two, in subsection (4), the words “in relation to England and Wales” and the words “and, in relation to Scotland, means a body of any of the descriptions specified in Part II of that Schedule” and the words “or servitude”, and subsection (5).<br/> In section twenty-three, subsection (5).<br/> In section twenty-four, subsection (4).<br/> Section twenty-five.<br/> In section twenty-six, subsection (7).<br/> In section twenty-seven, subsection (7).<br/> In section twenty-eight, subsection (9).<br/> In section twenty-nine, subsection (2).<br/> In section thirty, in subsection (6), the words “in their application to England and Wales”.<br/> In section thirty-one, subsection (12).<br/> In section thirty-two, subsection (6).<br/> In section thirty-five, subsection (6).<br/> In section thirty-six, subsection (7).<br/> In section thirty-seven, subsection (9).<br/> In section thirty-eight, subsection (4).<br/> In section thirty-nine, subsection (7).<br/> In section forty-three, subsection (8).<br/> In section forty-four, subsection (6).<br/> In section forty-five, subsection (3).<br/> In section forty-six, subsection (4).<br/> Section forty-seven.</p> |

| Session and Chapter                   | Short Title                                                 | Extent of Repeal                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | SCH. |
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| 7 & 8 Eliz. 2.<br>c. 53— <i>cont.</i> | The Town and Country<br>Planning Act, 1959—<br><i>cont.</i> | <p>In section forty-eight, subsection (2).</p> <p>In section forty-nine, subsection (4).</p> <p>Section fifty.</p> <p>In section fifty-one, subsection (5).</p> <p>In section fifty-two, subsection (7).</p> <p>In section fifty-three, subsection (3).</p> <p>In section fifty-four, the words “or the Scottish Act of 1954, as the case may be”.</p> <p>In section fifty-five, subsection (6).</p> <p>In section fifty-seven, in subsection (1), in the definition of “compulsory acquisition”, the words “in relation to England and Wales” and the words “and, in relation to Scotland, have the same meanings as in the Scottish Act of 1954”, in the definition of “disposal” the words “excambion” and “servitude” and the words “or the creation of a heritable security”, in the definition of “grant-aided function” the words “or the Local Government and Miscellaneous Financial Provisions (Scotland) Act, 1958” and the words “or any of the enactments specified in Part I of the Sixth Schedule to the Housing (Scotland) Act, 1950”, in the definition of “the Minister”, the words “in relation to England and Wales” and the words “and in relation to Scotland means the Secretary of State”, in the definition of “planning decision”, the words “in relation to England and Wales” and the words from “and, in relation to Scotland”, to the end, in the definition of “planning permission”, the words “in relation to England and Wales” and the words “and, in relation to Scotland, means permission under Part II of the Scottish Act of 1947”, the definitions of “the Scottish Act of 1947” and “the Scottish Act of 1954” and, in the definition of “tenancy”, the words “in relation to England</p> |      |

| SCH. | Session and Chapter                   | Short Title                                           | Extent of Repeal                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
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|      | 7 & 8 Eliz. 2.<br>c. 53— <i>cont.</i> | The Town and Country Planning Act, 1959— <i>cont.</i> | <p>and Wales ", in subsection (3), in paragraph (a), the words "in relation to England and Wales ", and paragraph (b); in subsection (4), the words "in relation to England and Wales " and the words from "and in relation " to the end; in subsection (5), the words "and subsections (2) and (3) of section one hundred and eight of the Scottish Act of 1947 ", the word "respectively ", and the words "and to the Third Schedule to the Scottish Act of 1947 "; in subsection (6), the words from "and in this subsection " to the end; and subsection (7).</p> <p>In section fifty-eight, in subsection (2), the words "and of section seventeen of the Scottish Act of 1947 ", the words "or section seventeen ", the words "or the Scottish Act of 1954 " and the words "or the Scottish Act of 1947 "; in subsection (3), the words "and section fifty-five of the Scottish Act of 1954 "; and subsection (7).</p> <p>In section fifty-nine, in subsection (1), the words from "and the Town and Country Planning (Scotland) Acts " to the end.</p> <p>In the First Schedule, paragraphs 5 and 10.</p> <p>In the Second Schedule, in Part I, paragraph 8, and Part II.</p> <p>In the Third Schedule, paragraphs 12 and 13.</p> <p>In the Fourth Schedule, Part II.</p> <p>In the Fifth Schedule, in paragraph 13, in sub-paragraph (2), the words "In the application of those subsections to England and Wales ", and sub-paragraph (3), and paragraph 17.</p> <p>In the Sixth Schedule, paragraphs 5 and 12 to 17.</p> <p>In the Seventh Schedule, the entries relating to the Town and Country Planning (Scotland) Act, 1947, and the Town and Country Planning (Scotland) Act, 1954.</p> <p>The Tenth Schedule.</p> <p>In the Second Schedule, paragraphs 1 and 2.</p> |
|      | 7 & 8 Eliz. 2.<br>c. 58.              | The Finance Act, 1959                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |